

(revocation) because unlike in that case the patent had already been revoked by the opposition division and thus could not be revoked again. However, the order to dismiss the appeal ultimately had the same outcome, namely that the decision to revoke the patent became final.

The board in T.706/00 pointed out that the EPO cannot depart from a request once made. It can only grant or deny the request; it cannot grant more, less or even something different. Unless a grantable text is submitted, at least auxiliarily, the request is rejected in full. In T.549/96, the board noted that an applicant had to unambiguously indicate, at the end of the proceedings, which text he proposed. Otherwise, the examining division would be unable to decide on the basis of which version it should proceed and the application would eventually have to be refused, since there would be no clear request at all. Thus, if an applicant failed to indicate his approval of the text of an allowable subsidiary request, e.g. by express disapproval or by maintaining one or more unallowable higher-preference requests, the examining division could refuse the application under Art. 97(1) EPC 1973 (Art. 97(2) EPC) (see also T.976/97).

In T.237/96 the board held that Art. 113(2) EPC could not be interpreted in the sense that the examining division was bound to accept any amendment which the applicant might propose, only to ensure that there was a version approved by him. In circumstances in which, as in the case in question, amendments proposed by the applicant after the R. 51(4) EPC 1973 (R. 71(3) EPC) communication were with good reason not allowed by the examining division by virtue of R. 86(3) EPC 1973 (R. 137(3) EPC) and the applicant did not give its agreement to any other version, the established practice of the EPO, sanctioned by consistent case law, was to refuse the application on the ground that there was no version approved by the applicant within the meaning of Art. 113(2) EPC.

In the inter partes case T.917/95 a patent proprietor had submitted a new claim but no amended description or drawing. The descriptions and drawings relating to the previous claims were incompatible with the new claim. Because the proprietor failed to appear at the oral proceedings, no documents were available on the basis of which the patent could have been maintained (see also T.725/00 and T.1174/01).

In T.255/05 the board held that under Art. 113(2) EPC, it is the applicant's responsibility to define the text on the basis of which it requests a patent to be granted. When the appellant, even after having been invited to do so by the board, does not clearly indicate the order in which its requests are submitted and what the exact content of each of these requests is, there is no text submitted or agreed by the applicant within the meaning of Art. 113(2) EPC, and no request which could be considered by the board.

In T.690/09 the examining division had refused to consent to the latest submitted set of claims under R. 137(3) EPC, despite these being maintained by the applicant. The board held that this would not automatically revive the previous set of claims that the examining division had consented to consider, unless the applicant had indicated that he was relying on these as an auxiliary request. According to the board, deciding to refuse an application on the ground that claims are not allowable contravenes Art. 113(2) EPC if the applicant is no longer putting forward these claims and amounts to a substantial procedural violation

(see for example T. 946/96). Similarly, in T. 996/12 the board held that, unlike the situation in which an applicant submitted one or more auxiliary requests, submitting a new main request automatically leads to the replacement of any previous main request(s). By basing its decision explicitly on an earlier set of claims, the examining division decided upon a text to which the appellant (no longer) agreed.

In T. 1227/14 the appellant (patent proprietor) submitted that, contrary to what was indicated in the minutes of the oral proceedings, it had not delegated the adaptation of the description to the opposition division. It had instead requested a return to written proceedings for the adaptation of the description, but that had been omitted from the minutes. In spite of this, it had not requested the correction of that omission by the opposition division. The opposition division, however, had issued the impugned interlocutory decision on the text in which the opposed patent could be maintained without first submitting that text – containing the division's adapted description – to the patent proprietor. It had thus violated the principle of the right to be heard laid down in Art. 113(2) EPC. Even and especially where adaptation of the description is delegated to an EPO department, there is no scope for releasing it from this obligation.

The board in T. 861/16 noted that there was no mention anywhere, in either the minutes or the decision, that the patent proprietor had approved the amended text. Nor had the respondent (opponent) offered any evidence that the patent proprietor had explicitly approved a text submitted before the opposition division's decision. The board held that since the principle of tacit acceptance (*qui tacet consentire videtur*) was not established in the EPC, it was not enough to ask the patent proprietor if it wished to comment on the amendments to the description carried out by the opposition division. The opposition division had to ensure that the patent proprietor had given its agreement. The board held that in the absence of the patent proprietor's approval of the version as maintained, the proceedings before the opposition division were vitiated by a substantial procedural violation (Art. 113(2) EPC).

In T. 536/13 the board held that the "decision according to the state of the file" evidently did not take into account the comments and amended application documents filed by the applicant (appellant) in response to the examining division's second communication. The board found that the decision consequently did not comply with the requirement of Art. 113(2) EPC. The board also found that the decision was not reasoned within the meaning of R. 111(2) EPC. In the absence of any reasoning in respect of the applicant's latest comments and amendments, the board and the appellant were left in doubt as to which of the previously-raised objections still applied. See also chapters III.B.2.4.4 "Failure to consider submissions made after a communication", III.K.3.5. "Decisions according to the state of the file".

In T. 1558/18, the opposition division's decision to terminate the opposition proceedings, with the result that the contested patent had been maintained unchanged, had been at direct odds with the appellant's request that the patent be maintained in an amended version. The contested decision thus infringed the fundamental procedural principle of "party disposition" enshrined in Art. 113(2) EPC.

3.4. Cases where the EPO is uncertain or mistaken about the approval of the text

In T 382/10 the board held that, to avoid any misunderstanding, in particular when requests were amended during oral proceedings, the examining division should clarify the final requests before pronouncing its decision at the conclusion of oral proceedings (see also chapter V.B.4.4.2 "Rule 104(b) EPC – failure to decide on a party's request"). In accordance with prevailing case law (T 666/90, T 552/97 and T 1439/05, see below), the fact that the final requests were not established contravened Art. 113(2) EPC and was considered a substantial procedural violation. In T 1104/14 it was held that failure to obtain clarification where needed also amounted to a procedural violation because it was then not clear which version of the patent was being put forward by the patent proprietor for decision, resulting in a breach of Art. 113(2) EPC. Basing a decision on the wrong requests constituted a substantial procedural violation because freedom of disposition was cardinal and disregarding it adversely impacted the entire proceedings.

In T 666/90 the status of the requests was not clarified during oral proceedings before the opposition division. This resulted in a disagreement between the patentee and the opposition division in the period between oral proceedings and the drafting of the decision. According to the board, the appropriate action would have been to request, prior to the decision being issued, a written copy of the final version of the requests and a clarification of their order. In T 552/97 the opposition division had taken no decision on the main request, incorrectly assuming that it was no longer in the proceedings. The board pointed out that EPO departments should clarify the position before issuing decisions, especially if requests had been amended in oral proceedings. In T 355/03 it was unclear which text the applicant wished to have as the basis for grant. The board held that the examining division should have established what the applicant really wanted.

In T 1653/16, the appellant (applicant) argued that its main request had not been addressed in the examining division's decision. Instead, the decision was based on a version of a claim "unofficially submitted" by e-mail as a basis for discussion, of which there was no record on the file. From the minutes of the oral proceedings, it was not clear whether the main request was still maintained or whether the applicant even requested a decision on the amended claim since it appeared that at the end of the proceedings, before announcing the decision, the applicant was not asked to state its final requests. The board concluded that as the examining division had not established whether the main request which it refused was the version agreed by the applicant, it had violated Art. 113(2) EPC thereby committing a substantial procedural violation.

In T 1439/05 it was held that if there were several requests in the form of a main request and successive auxiliary requests submitted in order of relevance, the examining division was bound in its decision by the order in which the requests had been submitted.

In T 425/97, the text of the single claim attached to the written decision of the opposition division was different from the text apparently held patentable at the oral proceedings. From the original minutes of the oral proceedings, the history of the case and further circumstances, the board concluded that the opposition division, in violation of

Art. 113(2) EPC, had taken a decision on the patent on the basis of a text which had neither been submitted nor agreed by the proprietor of the patent.

In T 543/92 and T 89/94 the opposition division unintentionally failed to take account of a document introducing amended claims. In both cases the patent was revoked. The board ruled that once an item of mail had been received at the EPO it had to be considered to have been received by the organ deciding the case. Responsibility for the correct processing of mail thereafter lay with the relevant departments within the EPO. The decision under appeal was thus in breach of Art. 113(2) EPC.

In T 1351/06, the main request had not been withdrawn and had therefore remained pending. As a result, the decision to grant the patent on the basis of the text approved by the applicant as an auxiliary request was contrary to Art. 113(2) EPC.

In T 736/14 the board held that, if an applicant whose application is non-unitary responds unclearly and/or in a misleading way to an invitation from the examining division to designate which searched invention it wishes to prosecute further, it could not be automatically assumed that the applicant selected the invention covered by the main request for examination. Rather, the examining division had to clarify, e.g. via a further communication, which of the searched inventions the applicant actually wanted it to examine. Confronting the applicant with an irrevocable decision not to admit an auxiliary request covering one of the inventions searched constituted a substantial procedural violation of the applicant's right to be heard. The examining division had presented the applicant with a fait accompli.

C. Oral proceedings

1.	Introduction	689
2.	Right to oral proceedings	690
2.1.	Right to oral proceedings in examination, opposition and appeal proceedings	690
2.1.1	Right to oral proceedings even after a Rule 71(3) EPC communication	691
2.1.2	Right to oral proceedings even if no new arguments are presented	691
2.1.3	No right to telephone conversation	691
2.2.	Right to oral proceedings before the Receiving Section	692
3.	Oral proceedings at the instance of the EPO	692
3.1.	Expediency of oral proceedings	692
3.2.	Effects of withdrawal of a request for oral proceedings in case of oral proceedings at the instance of the EPO	693
4.	Request for oral proceedings	693
4.1.	Doubt as to the nature of the request for oral proceedings	694
4.2.	Wording of request	694
4.2.1	Wording constituting a request	694
4.2.2	Wording not constituting a request	695
4.3.	Withdrawal of request for oral proceedings	696
4.3.1	Withdrawal only by virtue of a clearly expressed intention not to proceed with the request	696
4.3.2	Announcing non-attendance	696
4.3.3	Appeal inadmissible	697
4.3.4	Explicit withdrawal of request for oral proceedings – reimbursement of appeal fee	697
4.4.	Further oral proceedings before the same department	697
4.4.1	Same subject of proceedings	697
4.4.2	Not the same subject of proceedings	698
4.5.	Auxiliary request for oral proceedings	699
4.6.	No oral proceedings – decision in favour of the party	699
4.7.	Request for oral proceedings in relation to further prosecution proceedings after remittal	700
4.8.	Request for oral proceedings as a reply to a communication	700
5.	Non-attendance at oral proceedings	700
5.1.	Right to present comments and non-attendance of a party by choice	701
5.2.	Non-attendance of party who filed new claims without amended description before oral proceedings: no reason for postponement of ruling	701
5.3.	Obligation to give notice if not attending oral proceedings	701
6.	Preparation of oral proceedings	703
6.1.	Fixing or changing the date for oral proceedings	703
6.1.1	Legal provisions and notices	703
6.1.2	Request for changing the date of oral proceedings	703
6.1.3	Request or reasons for postponement filed too late	704
6.1.4	Reasons submitted in a request for postponement	705
a)	Serious illness	705
b)	Booked holidays	706